FOR BUSINESS OWNERS, FAMILY OFFICES & NRIS · 27 OCTOBER 2026

5 moves that affect your business this week.

- Supreme Court locks creditors into a ₹172.55 crore plan once it reaches NCLT
- FDC board clears ₹120 crore buyback with promoters joining the tender
- Avalon hands Zollner a ₹425 crore warrant route into the parent
- Bombay High Court enforces ₹10 lakh a week redevelopment delay damages
- Kerala High Court freezes the CMRL Exalogic vigilance probe for four weeks

SWIPE →

INSOLVENCY · SUPREME COURT

Supreme Court bars creditors from withdrawing approved plan

On 26 October 2026, in Bank of India v. S.M. Kamal Pasha, the Supreme Court held that a committee of creditors cannot withdraw its approval of a resolution plan once the plan is placed before the NCLT. Lenders had sought to back out of the ₹172.55 crore plan after the debtor's cash rose from ₹30 crore to ₹165 crore, and the Court said improved profitability alone does not justify refusing a compliant plan.

WHO IS EXPOSED · WHAT TO CHECK

Erstwhile promoters hoping to reclaim a company through a late settlement, and successful bidders sitting on an approved plan, are both directly affected. Check this week whether any settlement or withdrawal application in your insolvency matter was filed before or after the plan reached the NCLT, because that timing now decides its fate.

SECURITIES · FDC BOARD

FDC clears ₹120 crore buyback, promoters to participate

On 27 October 2026 the board of FDC Ltd approved a tender-offer buyback of 24 lakh shares at ₹500 each, totalling ₹120 crore, with a record date of 13 November 2026. The disclosure states that promoters intend to participate, and this is a board approval rather than a completed payout.

WHO IS EXPOSED · WHAT TO CHECK

Promoter family members and public shareholders of FDC face a tender decision, and promoters elsewhere weighing a cash exit should note that a buyback lets them sell alongside the public at a fixed price. Check this week whether your holding sits in your demat account before the 13 November record date and what your proportionate entitlement to tender would be.

FUNDRAISE · AVALON BOARD

Avalon approves ₹425 crore warrants to Zollner Elektronik

On 27 October 2026 the board of Avalon Technologies Ltd approved a preferential issue of about 19.38 lakh warrants at ₹2,193.20 each to Zollner Elektronik AG, aggregating ₹425 crore. Each warrant converts into one equity share within 18 months, and shareholders will consider the issue and an amendment to the articles of association at an EGM on 21 November.

WHO IS EXPOSED · WHAT TO CHECK

Minority shareholders of Avalon face dilution, and promoters of any company bringing a foreign partner onto the parent cap table should expect that partner to ask for board and veto rights in the articles. Check this week what the proposed articles amendment actually grants Zollner and how much of the ₹425 crore is payable upfront versus only on conversion.

ARBITRATION · BOMBAY HIGH COURT

Bombay HC upholds ₹2.675 crore redevelopment delay award

In a judgment of 23 October 2026 reported on 26 October, the Bombay High Court upheld an arbitral award of ₹2.675 crore plus interest in favour of Jal Ratn Deep Co-operative Housing Society against developer Kumar Urban Development Pvt Ltd, over five buildings with 97 flats in Goregaon. The contract fixed damages at ₹10 lakh per week of delay, and Justice Aarti Sathe held that no separate proof of actual loss is needed where loss is hard to quantify and the agreed sum is a genuine pre-estimate rather than a penalty.

WHO IS EXPOSED · WHAT TO CHECK

Developers who signed per-week delay clauses are exposed to the full agreed sum without the society having to prove a rupee of loss, and families in societies awaiting redevelopment now hold a sharper recovery tool. Check this week whether your redevelopment or construction agreement fixes a weekly delay amount and whether that figure reads as a fair estimate or an unreasonable penalty.

ENFORCEMENT · KERALA HIGH COURT

Kerala HC stays CMRL Exalogic vigilance probe four weeks

On 26 October 2026 a division bench of the Kerala High Court stayed the Vigilance investigation in the CMRL Exalogic payments case for four weeks, granting interim relief to Pinarayi Vijayan, Veena T and P.A. Mohamed Riyas in their appeals against a direction to register an FIR. The case concerns alleged payments by Cochin Minerals and Rutile Ltd to Exalogic Solutions and others without corresponding services, and the ED opposed the stay, which covers only the Vigilance probe and not ED proceedings.

WHO IS EXPOSED · WHAT TO CHECK

Promoters whose companies pay consultancy or software fees to firms owned by relatives of politically exposed persons are the ones exposed, because a stay of one agency does not stop another. Check this week that every related-party service payment on your books has a signed contract, invoices and evidence of work actually delivered.

THE THROUGH-LINE

Every item today turns on a moment when a party tried to change the deal after the money was committed: creditors wanting out of a plan, a developer disputing agreed damages, a company defending payments it cannot show services for. The lesson for a business owner is that the document you signed, and the date you signed it, will outlast any later argument about fairness.

If any of these touches your company or family, message me the number. I will tell you where you stand.

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